

officials under § 1983 have increased geometrically.¹⁶ Congress enacted § 1988 for the specific purpose of facilitating and encouraging citizens of limited means to obtain counsel to pursue § 1983 remedies. But §§ 1983 and 1988 are available regardless of the financial ability of a plaintiff to engage private counsel. The lure of substantial fee awards,¹⁷ now routinely made to prevailing § 1983 plaintiffs, assures that lawyers will not be reluctant to recommend and press these suits.¹⁸ The Court again ignores reality when it suggests

¹⁶ Civil rights cases accounted for 8.3% of the total civil litigation in the Federal District Courts for the 12 months ended June 30, 1982, and in 1982 civil rights suits filed by state prisoners against state officials had increased 115.6% over the number of similar suits filed in 1977 before the prospect of a fee award under § 1988 became an added incentive to § 1983 claims. Annual Report of the Director of the Administrative Office of the United States Courts 100-103 (1982).

¹⁷ Recent fee awards under § 1988 have increased with the precipitous rise in hourly rates. In *Blum v. Stenson*, 465 U. S. 886 (1984), for example, hourly rates of \$95 to \$105 for second- and third-year associates were found to be the "prevailing rates" in the community. Indeed, large fee awards recently have been awarded against state-court judges. See, e. g., *Morrison v. Ayooob*, No. 78-267 (WD Pa. 1983) (fees of \$17,412 and \$5,075 awarded against state-court judges in suit for injunctive and declaratory relief), aff'd, 727 F. 2d 1100 (CA3), rehearing denied, 728 F. 2d 176 (1984), cert. denied, *post*, p. 973.

¹⁸ Nor, as this case illustrates, do the burdens of litigation necessarily end when a district court approves a fee as reasonable. The Court's decision makes it likely that a request for an additional fee will be made for services rendered in the Court of Appeals and this Court. Such a request could result in ongoing litigation. Regrettably, disputes over the reasonableness of § 1988 fee awards often become the major issue in the entire litigation. This is demonstrated by the fact that two attorney's fees cases have been litigated in this Court in successive Terms. *Hensley v. Eckerhart*, 461 U. S. 424 (1983); *Blum v. Stenson*, *supra*. See also *Copeland v. Marshall*, 205 U. S. App. D. C. 390, 641 F. 2d 880 (1980) (en banc); *National Assn. of Concerned Veterans v. Secretary of Defense*, 219 U. S. App. D. C. 94, 675 F. 2d 1319 (1982). Moreover, work on fee petitions may be compensated at higher hourly rates than work on the merits. See, e. g., *Morrison v. Ayooob*, *supra* (hourly rates of \$40 and \$75 awarded to legal services firm that initially prosecuted the § 1983 claim; fees of \$45 and \$110 awarded to private firm hired to prepare and litigate the fee petition).